

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAWN JOSEPH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
GARRETT GORHAM, Tax Reg. No. 925375, POLICE
OFFICER SEAN COLLINS, Tax Reg. No. 954654,
POLICE OFFICER GREGORY JOHNSON, Tax Reg.
951852, SERGEANT MARK SMITH, Tax Reg. 910304,
and POLICE OFFICERS JOHN DOES #1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 8, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer GARRETT GORHAM, Tax Reg. No. 925375, 67th Precinct, 2820 Snyder Avenue, Brooklyn, New York, 11226
Police Officer SEAN COLLINS, Tax Reg. No. 954654, Patrol Borough Brooklyn North, One Police Plaza, Room 1100, New York, New York 10038
Police Officer GREGORY JOHNSON, Tax Reg. 951852, 67th Precinct, 2820 Snyder Avenue, Brooklyn, New York, 11226
Sergeant MARK SMITH, Tax Reg. 910304, 67th Precinct, 2820 Snyder Avenue, Brooklyn, New York, 11226

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, SHAWN JOSEPH, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section §
1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to
the United States Constitution, and the common law and the laws of the State of New York. On
March 11, 2014, at approximately 10:00 p.m., plaintiff, Shawn Joseph, while lawfully present in
the vicinity of East 95th Street and Clarkson Avenue, Brooklyn, New York, was subject to an
unlawful search, seizure, detention, false arrest, and false imprisonment by New York City
police officers. Thereafter, the defendant police officers violated plaintiff's right to due process
and right to a fair trial and maliciously prosecuted plaintiff. Plaintiff was deprived of his
Constitutional and common law rights when the individual defendants unlawfully searched,
falsely arrested, falsely imprisoned, maliciously prosecuted plaintiff and denied plaintiff the right
to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States
Constitution.

PARTIES

2. Plaintiff SHAWN JOSEPH is a resident of the County of Kings, State of New York.

3. Defendant Police Officer GARRETT GORHAM, Tax Reg. No. 925375, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer GARRETT GORHAM, Tax Reg. No. 925375, was at all times relevant herein assigned to the 67th precinct.

5. Defendant Police Officer GARRETT GORHAM, Tax Reg. No. 925375, is being sued in his individual and official capacity.

6. Defendant Police Officer SEAN COLLINS, Tax Reg. No. 954654, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Police Officer SEAN COLLINS, Tax Reg. No. 954654, was at all times relevant herein assigned to the 67th precinct.

8. Defendant Police Officer SEAN COLLINS, Tax Reg. No. 954654, is being sued in his individual and official capacity.

9. Defendant Police Officer GREGORY JOHNSON, Tax Reg. 951852, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant GREGORY JOHNSON, Tax Reg. 951852, was at all times relevant herein assigned to the 67th precinct.

11. Defendant GREGORY JOHNSON, Tax Reg. 951852, is being sued in his individual and official capacity.

12. Defendant Sergeant MARK SMITH, Tax Reg. 910304, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant Sergeant MARK SMITH, Tax Reg. 910304, was at all times relevant herein assigned to the 67th precinct.

14. Defendant Sergeant MARK SMITH, Tax Reg. 910304 is being sued in his individual and official capacity.

15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff, in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim against THE CITY OF NEW YORK, in compliance with Municipal Law Section 50.

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

21. On July 14, 2014, defendant City of New York conducted a hearing pursuant to general Municipal Law Section 50-h.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On March 11, 2014, at approximately 10:00 p.m., plaintiff was lawfully present in the vicinity of East 95th Street and Clarkson Avenue, Brooklyn, New York, when two individuals approached plaintiff and pointed a gun at him.

25. The individuals fired their weapon at plaintiff multiple times and then ran away.

26. Plaintiff was shot in his right arm, lower back, and through the backs of both of his legs.

27. A female bystander whom plaintiff did not know helped plaintiff and called an ambulance for him.

28. Shortly thereafter, an ambulance and police vehicles arrived at the scene.

29. Plaintiff was placed on a stretcher, loaded into the ambulance and transported to Kings County Hospital to get treatment for his injuries.

30. At no point in time did plaintiff commit any crime, nor did the defendant police officers have any reason to believe plaintiff committed a crime.

31. A police officer from the 67th Precinct accompanied plaintiff in the ambulance and unlawfully arrested him without probable cause or legal justification.

32. Plaintiff was admitted into Kings County Hospital to receive medical treatment for his multiple gunshot wounds.

33. Plaintiff remained in police custody and was unlawfully handcuffed and shackled to a gurney until March 13, 2014, when he was discharged from Kings County Hospital.

34. Immediately thereafter, defendants transported plaintiff to the 67th precinct, where he was unlawfully fingerprinted, photographed, and detained in a holding cell for many hours.

35. Plaintiff was in so much pain from his gunshot wounds that he was transported back to Kings County Hospital via an ambulance to receive further treatment for his pain and injuries.

36. Plaintiff was prescribed with pain medication by doctors at Kings County Hospital and then transported back to the 67th precinct, where he remained in a holding cell overnight until March 14, 2014.

37. Notably, plaintiff was in severe pain while he was unlawfully detained at the 67th precinct because he had a broken pelvic bone, was recovering from multiple gunshot wounds to both legs, his back and his arm, and was not permitted to take the pain medication prescribed to him by the doctors at Kings County Hospital.

38. In the morning hours of March 14, 2014, plaintiff was transported to Kings County Central Booking.

39. The defendant police officers maliciously and without probable cause provided false, misleading, and/or incomplete information about evidence and circumstances leading plaintiff's arrest to the District Attorney's office, which initiated the prosecution against plaintiff without probable cause.

40. At arraignment, plaintiff was charged Criminal Possession of a Weapon in the Second Degree (PL 265.03), Criminal Possession of a Weapon in the Fourth Degree (PL 265.01), and Criminal Possession of a Firearm (PL 265.01-b(1)), based upon the defendants' false allegations against him.

41. After approximately 12 hours at Kings County Central Booking, plaintiff was arraigned on March 14, 2014 at approximately 8:00 p.m. and bail was set at \$3,500.

42. Plaintiff was unable to post bail and was remanded into NYC Department of Correction custody until March 16, 2014, when he posted bail and was released on his own recognizance after approximately six days in custody.

43. Thereafter, all charges against plaintiff were dismissed by motion of the Kings County District Attorney's Office on March 26, 2014.

44. Some of the defendant police officers observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and malicious prosecution against plaintiff.

45. The unlawful search, false arrest, false imprisonment, malicious prosecution, denial of due process and denial of his right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth and Fourteenth Amendment Rights

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

47. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, falsely arrested, falsely imprisoned, maliciously prosecuted, denied his due process rights and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

52. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

55. Defendants lacked probable cause to search plaintiff.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 57 with the same force and effect as if fully set forth herein.

59. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

60. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

61. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. In withholding/creating false evidence against plaintiff Shawn Joseph and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

63. As a result of the foregoing, plaintiff Shawn Joseph sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

FIFTH CAUSE OF ACTION

Malicious Prosecution

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, the laws of the State of New York and New York State common law.

66. Defendants commenced and continued a criminal proceeding against plaintiff.

67. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

68. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

69. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Shawn Joseph. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

75. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein.

80. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

JURY DEMAND

81. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Shawn Joseph demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
 June 8, 2015

By: /s/ _____
 STUART E. JACOBS
 DAVID M. HAZAN
 JACOBS & HAZAN, LLP
 Attorneys for Plaintiff
 11 Park Place, 10th Floor
 New York, NY 10007
 (212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
 Police Officer GARRETT GORHAM, Tax Reg. No. 925375, 67th Precinct, 2820 Snyder Avenue, Brooklyn, New York, 11226
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 Sergeant MARK SMITH, Tax Reg. 910304, 67th Precinct, 2820 Snyder Avenue, Brooklyn, New York, 11226

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 8, 2015

_____/s/_____
STUART E. JACOBS